

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 04/07/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: MS25-1031
CASE NAME: EQUITY RESIDENTIAL MANAGEMENT, LLC VS. SITIVENI MEAFOOU
JURY TRIAL
FILED BY: MEAFOOU, SITIVENI
TENTATIVE RULING:

Law & Motion

2. 9:00 AM CASE NUMBER: L22-04110
CASE NAME: VELOCITY INVESTMENTS LLC VS. NICOLE MUNOZ
HEARING IN RE:
FILED BY: MUNOZ, NICOLE

TENTATIVE RULING:

Background

Defendant filed a Motion, on 1/23/26, to set aside the Default Judgment, claiming that there was a lack of actual notice, under Section 473.5 of the CCP.

The Default Judgment was filed on 10/23/25.

Notice of this Motion was timely filed on Plaintiff.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process

Section 473.5(a) of the CCP requires that a defendant make this motion either within 2 years from the time judgment was taken, or 180 days after service on defendant with written notice that judgment was taken, whichever occurs earlier.

In the instant matter, Defendant's Motion was filed more than 2 years after time of judgment, which is outside the permissible time window.

Disposition

Defendant's Motion is Denied.

Plaintiff to file the Order.

3. 9:00 AM CASE NUMBER: L22-06113

CASE NAME: CAPITAL ONE N.A. VS. EDWIN CHIRINO

*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at the address for Defendant's counsel of record. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement, filed on 1/17/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$16,101.76, plus costs, less any credits for payments received.

The Defendant made payments of \$7,050.

Costs are \$578.50. A memo on costs was filed with the court.

A dismissal was entered on 1/31/24.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$9,630.26.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L23-03486
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STEPHANIE JIN
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION**
FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 11/6/25, a motion to enter judgment pursuant to stipulation.

The Motion is unopposed.

The motion was originally scheduled for 1/27/26, but was continued by the court to 4/7/26, for lack of service on the Defendant. Plaintiff had notified only an attorney about the 1/27/27 Motion, yet there was no evidence that the attorney was in fact counsel of record.

The court had ordered the Plaintiff to notify the Defendant of the 4/7/26 hearing.

There is still no evidence that Plaintiff has served Defendant with notice of this Motion

date, nor with a copy of the Motion.

Disposition

The Motion will be dropped for calendar. It will not be continued.

6. 9:00 AM CASE NUMBER: L24-03495

CASE NAME: DISCOVER BANK VS. LYNDIA MATTHEWS

*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

FILED BY: MATTHEWS, LYNDIA J

TENTATIVE RULING:

Background

Defendant filed a Motion, on 1/26/26, to set aside the Default Judgment, claiming that there was a lack of actual notice, under Section 473.5 of the CCP, and also attributing the failure to respond to mistake, inadvertence, neglect or surprise, under Section 473(b) of the CCP.

The Default Judgment was filed on 9/30/25.

The Motion is unopposed, but there is no proof that the Plaintiff was given notice of Defendant's motion or the hearing.

However, given the court's tentative ruling, below, there is no prejudice to the Plaintiff in proceeding with this analysis.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

Section 473(b) of the CCP requires that the motion be made no later than 6 months from the time the judgment was taken.

Section 473.5 of the CCP allows a longer period of time within which a defendant can make a motion, which is the earlier of: 2 years from the time judgment was taken; or 180

days after service on defendant with written notice that judgment was taken.

Plaintiff filed a proof of service on 5/22/24, of which the court takes judicial notice, reflecting that a process server completed personal service on 5/22/24. The person who was served identified herself as Lynda J. Matthews, and the service took place at the same address the Defendant used on this Motion. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant, in her declaration claims she was not notified of the Default Judgment in the instant matter, and also that she was not notified of an OSC hearing scheduled on 7/31/25. She does, however, concede that she received notice of a CMC that was scheduled for 11/17/25, for which she appeared in court.

The court takes judicial notice of the written notice mailed to Defendant from the Court Clerk's Office, on 7/31/25. That notice reflected the CMC date of 11/17/25, the one of which Defendant was aware. The mailing address is the same as that where personal service of process on the Defendant was completed which, the court notes again, is the same address as that used by Defendant for this Motion.

The court does not find Defendant's position to be credible and does not find that the presumption of proper service has been rebutted.

Disposition

Defendant's Motion is Denied.

If Plaintiff does not appear, then the court will file the Order.

6. 9:00 AM CASE NUMBER: L24-04232

CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO

*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT (CONTINUED FROM 1/27/26)

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion on 1/7/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion was originally scheduled for 1/27/26 and was unopposed. However, the court continued the Motion, apparently to 3/17/26, per the Minutes from

1/27/26, because of insufficient notice to the Defendant.

The court ordered the Plaintiff to file the order, as well as to notify Defendant of the new date.

There is no record of this matter being called on 3/17/26, and it is unclear why it was calendared for 4/7/26 instead.

Either way, Plaintiff did not file the Order from the 1/27/26 hearing, and did not notify Defendant of either the 3/17/26 date, or the 4/7/26 date.

Disposition

This Motion will be continued to 6/23/26, 9am.

Plaintiff to file the Order, and to provide notice to the Defendant.

7. 9:00 AM CASE NUMBER: L25-00091

CASE NAME: WELLS FARGO BANK, NA VS. MARLIN THROWER

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION FOR AN ORDER DEEMING TRUTH OF THE MATTERS; DEC OF LOPEZ; PROPOSED ORDER**

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed, on 12/18/25, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration of Edgar Lopez (filed 12/18/25).

Plaintiff attached the particular facts at issue in their Exhibit 1 to their Declaration.

The Motion is unopposed.

Plaintiff served Defendant by mail with the Motion and notice of the hearing, on 12/18/25.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. §

2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

In the instant matter, on 10/2/25, Plaintiff requested responses to discovery – namely, Request for Admissions, Set One, which are attached as Exhibit 1 to the Declaration - with a due date of 11/6/25. Defendant did not respond and Plaintiff attempted to meet and confer and also extended the time for a discovery response. Defendant still did not respond.

Disposition

Plaintiff's Motion is granted.

Requests for Admission Numbers One through Nine, attached to the Declaration as Exhibit 1, will be deemed admitted.

Plaintiff to file Order.

8. 9:00 AM CASE NUMBER: L25-02948
CASE NAME: WELLS FARGO BANK, NA VS. DAVID RUPP, AN INDIVIDUAL
*HEARING ON MOTION IN RE: MOTION FOR SUMMARY JUDGMENT
FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ," or "Motion"), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion is unopposed.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that

there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first rules on the admissibility of Plaintiff's Declaration of Brendan Hogn. The court finds that the records that were submitted as Exhibits do qualify as exceptions to hearsay under the Business Records Exception. Mr. Hogan declared that he was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

However, any statements by Mr. Hogan in the declaration that rely on the observation of any records not contained in the Exhibit run afoul of Evidence Code Section 1523 and will be excluded. This would consist of any statements by Mr. Hogan where he indicates that he observed any particular records or applications in the matter that were not included in the Exhibits.

Further, any statements by Mr. Hogan purporting to have knowledge of a particular event in the instant matter, such as whether a document was mailed to Defendant, would be inadmissible hearsay without a foundational showing that Mr. Hogan has some knowledge of the customs and practices of the Plaintiff; and no such showing was made.

Next, the court evaluates whether Plaintiff has made a prima facie showing of a Breach of Contract.

Plaintiff has provided credit card billing statements that appear to be addressed to Defendant. There are hundreds of pages, which reflect purchases and billing statements, as well as a final balance of \$15,690.61.

However, there is no admissible evidence of an agreement. The only purported evidence in this regard from Mr. Hogan, when he declares that Defendant applied for a card and the cardmember agreement was then sent to the Defendant. Yet there is no foundation for this evidence. The exhibit depicting the cardmember agreement is not addressed to Defendant, nor does it bear his signature. And there is no documentary evidence depicting an application for such a card by Defendant. Moreover, Mr. Hogan did not indicate that he knew anything about the custom and practice of the Plaintiff in this regard.

Thus, the court does not find that Plaintiff has met its burden.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.

2. Plaintiff to prepare the Order after hearing.

9. 9:00 AM CASE NUMBER: L25-08228

CASE NAME: WELLS FARGO BANK, N.A. VS. JOSE SUCHITE

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED (MOTIONS)**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 12/18/25, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration of Edgar Lopez (filed 12/18/25) and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit 1 to their Declaration.

Defendant filed a Declaration in response, on 2/9/26, to which Plaintiff then replied, on 3/23/26.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

In the instant matter, on 10/15/25, Plaintiff requested responses to discovery – namely, Request for Admissions, Set One, which are attached as Exhibit 1 to the Declaration - with a due date of 11/19/25. Defendant did not respond and Plaintiff attempted to meet and confer and also extended the time for a discovery response. Defendant still did not respond.

In the response, Defendant indicates that he did not receive the initial discovery request

and that this Motion was the first time he became aware of the discovery request. He also indicates that he is willing to respond to discovery requests with proper service.

Apparently, however, no responses have been provided as of this writing, 3/25/26, which is well over a month since he acknowledged receiving this Motion along with the accompanying discovery request.

Let this serve as his notice of the discovery request.

Disposition

This Motion will be continued to 6/2/26, 9am, to give Defendant an opportunity to respond to the discovery requests by Plaintiff.

The Defendant will have 10 days from the date of this Order, 4/7/26, to respond to Plaintiff's discovery request.

Plaintiff to file Order.

No further notice to Defendant is necessary.

**10. 9:00 AM CASE NUMBER: N25-1754
CASE NAME: LUCIANA DATTA VS. DEEPAK MOORJANI
HEARING ON REQUEST FOR RESTRAINING ORDER
FILED BY:**

TENTATIVE RULING:

To be heard with CHRO hearing.

**11. 9:00 AM CASE NUMBER: N25-1754
CASE NAME: LUCIANA DATTA VS. DEEPAK MOORJANI
HEARING IN RE: SPECIAL MOTION TO STRIKE COMPLAINT
FILED BY:**

TENTATIVE RULING:

To be heard with CHRO hearing.

**12. 9:00 AM CASE NUMBER: N25-2130
CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA
*HEARING ON MOTION IN RE: ORDER TO SHOW CAUSE RE SANCTIONS, TO STRIKE FRAUDULENT
PLEADINGS AND DISQUALIFY COUNSEL
FILED BY:**

TENTATIVE RULING:

To be heard with CHRO hearing.

13. 9:00 AM CASE NUMBER: N25-2130

CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA
HEARING IN RE: MOTION TO CONSOLIDATE RE: CIVIL HARRASSMENT
FILED BY:

TENTATIVE RULING:

To be heard with CHRO hearing.

14. 9:00 AM CASE NUMBER: N25-2130

CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA

HEARING ON REQUEST FOR RESTRAINING ORDER

FILED BY:

TENTATIVE RULING:

15. 9:00 AM CASE NUMBER: N25-2138

CASE NAME: DEEPAK MOORJANI VS. GENOVEVA SIRLOPU

HEARING ON REQUEST FOR RESTRAINING ORDER

FILED BY:

TENTATIVE RULING: